



DEPARTMENT OF THE NAVY
NAVAL FACILITIES ENGINEERING SYSTEMS COMMAND, MID-ATLANTIC
9324 VIRGINIA AVENUE
NORFOLK, VIRGINIA 23511-3095

J&A No. ML-25-09

**JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION**

1. Contracting Activity

The contracting activity is Naval Facilities Engineering Systems Command, Mid-Atlantic (NAVFAC MIDLANT), Public Works Department Naval Support Activity Crane.

2. Description of Action Being Approved

This Justification and Approval (J&A) authorizes and approves the use of the following brand name material for security equipment that will be required as part of the construction project CNIC Final Denial Barriers as part of solicitation N4008525R2588 at Naval Support Activity Crane (referred to in this document as "NSA Crane") in Crane, Indiana.

Vehicle Barrier: RSSI RSS-2000N or Gibraltar G-2000N for active vehicle barriers (AVB) or final denial barriers

3. Description of Supplies/Services

The use of the indicated brand name equipment in Section 2 will be required for the installation of active wedge barrier models or final denial barriers [REDACTED] at NSA Crane. Rationale is detailed in Section 5. This acquisition will solicit proposals utilizing the Small Business General Construction Services Multiple Award Construction Contract for PWD Crane. The estimated cost of the total project is [REDACTED] including all labor, material, equipment, tools, management, supervision, transportation bonding and project oversight. The material cost for the active wedge barriers or final denial barriers is estimated at [REDACTED] and will be funded by Operations and Maintenance, Navy funds. The work under this contract is required to be completed within 240 days after award.

4. Statutory Authority Permitting Other Than Full and Open Competition

The statutory authority for this acquisition permitting other than full and open competition is Title 10, U.S.C. 3204(a)(1), as implemented by the Federal Acquisition Regulation (FAR) 6.302-1, "Only one responsible source and no other supplies or services will satisfy agency requirements."

5. Rationale Justifying Use of Cited Statutory Authority

NSA Crane has a critical need for final denial barriers or active vehicle barriers at [REDACTED] for the safety and security of the installation. The barriers are necessary for incoming and outgoing lanes [REDACTED]. On occasion a vehicle will fail to stop at the entrance gate to show appropriate ID to the guard. Instances have occurred when vehicles drive through the entrance gate ignoring command instruction to stop and not proceed. [REDACTED]

Applicable United States Government Accountability Office (GAO) Comptroller General decisions have acknowledged the authority of a federal agency to use other than competitive procedures when there is a reasonable need for standardization or interoperability with existing agency equipment or software. GAO has concluded that the government may use other than competitive procedures when there is a reasonable need for standardization or interoperability with existing equipment or software, and when it is likely that award to other sources would result in substantial duplication of cost to the government that is not expected to be recovered through competition.

CNIC-N6 Public Safety Systems (CNIC-N6 PSS) established basic requirements, standard configuration for new active vehicle barriers (AVB) to be installed on CNIC installations. A standard configuration is critical for command-and-control, remote monitoring, Sentry familiarity, parts inventory, technician education, and cost reductions. Requirements were derived from CNIC-N3 CONOPS, DoD policy, and industry best-practices and are required for any new AVBs covered by the Global Sustainment Contract. Systems must be fabricated, installed, integrated, and wired according to government provided designs. Barrier models are included on USACE DoD Anti-Ram Vehicle Barrier list and meet other criteria such as ASTM M50 rating, electro-mechanical operation only, continuous duty rated, flush to road surface in down position and no plate barriers, bollards, nets, or beam style barriers permitted. The approved barrier models included on the Global Sustainment Contract are: RSSI RSS-2000N or Gibraltar G-2000N.

[REDACTED] Standardization or interoperability avoids the significant operational burden and cost of having maintenance and engineering staff become proficient with the configuration, programming, commissioning, operation, and maintenance of AVBs from different manufacturers. Standardization reduces personnel training costs and decreases procurement costs related to additional equipment, maintenance, and support contracts for another manufacturer's hardware and software, as well as the maintenance of an additional parts inventory. Maintaining multiple solutions is inefficient and creates unnecessary work and overhead that increases the total costs of ownership and manpower costs. Standardization benefits operational effectiveness and maintenance efficiency.

NSA Crane's proactive approach to meet the CNIC-N6 PSS basic requirements, standard configuration for AVBs will allow for early engagement to ensure proper documentation (IDP,

A033), technical oversight, EAE coordination, and final acceptance as a part of the Global Sustainment Contract.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable

Active vehicle barriers models RSSI RSS-2000N and Gibraltar G-2000N authorized by this J&A will allow NSA Crane to utilize the pre-existing Global Sustainment Contract for standardization, quality control, consistency, and compatibility in products and system, which is not expected to be recovered through competition. These are the only two approved models on the Global Sustainment Contract.

7. Determination of Fair and Reasonable Cost

The Contracting Officer will determine that the price for this acquisition is fair and reasonable in accordance with FAR Part 15 prior to task order award. Analysis will be performed by one or more of the following techniques: (1) Comparison of proposed prices received in response to the RFP; (2) Comparison of proposed prices with the Independent Government Cost Estimate (IGCE); (3) Comparison of proposed prices with available historical information; and/or (4) Comparison of market survey results. The fair and reasonable determination will be made based on the total price of the project. This proprietary item is not an individual line-item price in the solicitation.

8. Actions to Remove Barriers to Future Competition

For the reasons set forth in Paragraph 5, NAVFAC MIDLANT does not intend to compete future contracts for the types of supplies/services covered by this document. The procurement of the new active vehicle barriers (AVB) models RSSI RSS-2000N or Gibraltar G-2000N is in the best interest of the government in order for NSA Crane to adhere to CNIC-N6 PSS requirements and standard configuration and be incorporated into the Global Sustainment Contract.

CERTIFICATIONS AND APPROVALS

TECHNICAL/REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief.



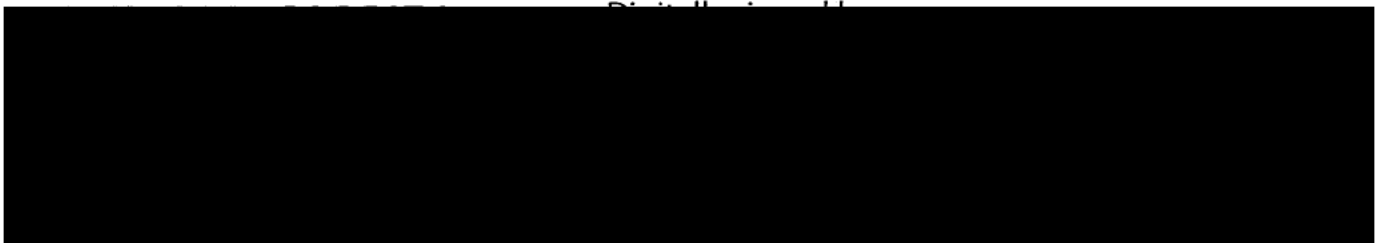
LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.



CONTRACTING OFFICER CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief.



APPROVING OFFICIAL (NPGI 6.304)

Upon the basis of the above justification, I hereby approve the contract action described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 3204(a)(1).

